

Amendment No. 1 to SB1817

White
Signature of Sponsor

AMEND Senate Bill No. 1817

House Bill No. 1725*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-3101, is amended by adding the following as new subsections:

(d) If a student enrolls in a public school pursuant to subsection (b) and the student has an active Section 504 plan developed under Section 504 of the Rehabilitation Act (29 U.S.C. § 794), an individualized family service plan under 20 U.S.C. § 1436, or an individualized education plan under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.), then the LEA shall take the necessary steps to ensure that necessary services are in place when the student enrolls.

(e) Notwithstanding another law to the contrary, if a student is enrolled in a high school that is managed and controlled by a local board of education for the LEA in which the student is enrolled in grade eleven (11) or twelve (12) and is the dependent child of a service member who relocates on military orders resulting in the student no longer residing in the school district due to the relocation, then the LEA shall allow the student to remain enrolled in the same high school until the student graduates or withdraws.

(f)

(1) An LEA shall allow a student to enroll in a school in the LEA if:

(A) The student is a dependent child of a service member who is relocated on military orders;

(B) Due to the relocation on military orders, the student resides within the school district at the time of enrollment in the LEA; and

(C) The student's parent intends to reside in the zone for the school for which the student is seeking to enroll no later than one (1) calendar year after the date on which the student enrolled.

(2) The student's parent shall provide proof that the student is a resident of the zoned school in which the student is enrolled pursuant to this subsection (f) no later than one (1) calendar year from the date on which the student enrolled in the LEA.

(3) If a parent does not provide proof within one (1) calendar year from the student's enrollment, then the LEA may require the student to transfer to the school for which the student is zoned to attend.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.